

*Annex I.*GENEVA CONVENTION  
CONCERNING UPPER SILESIA

SIGNED AT GENEVA, MAY 15th, 1922.

## PART III.

## PROTECTION OF MINORITIES.

## DIVISION I.

Whereas the Conference of Ambassadors decided, on October 20th, 1921 :

(1) that the Treaty with regard to the Protection of Minorities, etc., concluded on June 28th, 1919, between the United States of America, the British Empire, France, Italy and Japan on the one part, and Poland on the other part, should be applicable to those parts of Upper Silesia definitely recognized as part of Poland ;

(2) that the principles of equity and the maintenance of the economic life of Upper Silesia demand that the German Government should be bound to accept, at least for the transitional period of fifteen years dating from the definitive allocation of the territory, stipulations corresponding to Articles 1, 2, 7, 8, 9 (paragraphs 1 and 2), 10, 11 and 12 of the said Treaty as regards those parts of Upper Silesia definitely recognized as part of Germany ;

(3) that the provisions of the agreement to be concluded between the German and Polish Governments in order to put into force the above-mentioned principles, constitute obligations of international concern for Germany and Poland, and shall be placed under the guarantee of the League of Nations in the same way as the provisions of the Treaty of June 28th, 1919 ;

The two Contracting Parties have agreed on the following provisions :

*Article 64.*

The German Government agrees that for the transitional period of fifteen years the following provisions shall be applicable in the German part of the plebiscite area.

The Polish Government refers to the following provisions of the Treaty of June 28th, 1919, which shall be automatically applicable in the Polish part of the plebiscite area.

*Article 65.*

(Article 1 of Minorities Treaty of June 28th, 1919.)

Germany undertakes that the stipulations contained in Articles 66 to 68 shall be recognized as fundamental laws, and that no law, regulation or official action shall conflict or interfere with these stipulations, nor shall any law, regulation or official action prevail over them.

Poland undertakes that the stipulations contained in Articles 66 to 68 shall be recognized as fundamental laws, and that no law, regulation or official action shall conflict or interfere with these stipulations, nor shall any law, regulation or official action prevail over them.

*Article 66.*

(Article 2 of Minorities Treaty of June 28th, 1919.)

(1) Germany undertakes to assure full and complete protection of life and liberty to all inhabitants without distinction of birth, nationality, language, race or religion.

(1) Poland undertakes to assure full and complete protection of life and liberty to all inhabitants of Poland without distinction of birth, nationality, language, race or religion.

(2) All inhabitants shall be entitled to free exercise, whether public or private, of any creed, religion or belief, whose practices are not inconsistent with public order or public morals.

(2) All inhabitants of Poland shall be entitled to free exercise, whether public or private, of any creed, religion or belief, whose practices are not inconsistent with public order or public morals.

*Article 67.*

(Article 7 of Minorities Treaty of June 28th, 1919.)

(1) All German nationals shall be equal before the law and shall enjoy the same civil and political rights without distinction as to race, language or religion.

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prejudice any German national in matters relating to the enjoyment of civil or political rights, as for instance admission to public employments, functions and honours, or the exercise of professions and industries.

(3) No restriction shall be imposed on the free use by any German national of any language in private intercourse, in commerce, in religion, in the press or in public relations of any kind, or at public meetings.

(4) Notwithstanding any establishment by the German Government of an official language, adequate facilities shall be given to German nationals of non-German speech for the use of their language, either orally or in writing, before the Courts.

prejudice any Polish national in matters relating to the enjoyment of civil or political rights, as for instance admission to public employments, functions and honours, or the exercise of professions and industries.

(3) No restriction shall be imposed on the free use by any Polish national of any language in private intercourse, in commerce, in religion, in the press or in public relations of any kind, or at public meetings.

(4) Notwithstanding any establishment by the Polish Government of an official language, adequate facilities shall be given to Polish nationals of non-Polish speech for the use of their language, either orally or in writing, before the Courts.

#### *Article 68.*

(Article 8 of Minorities Treaty of June 28th, 1919.)

German nationals who belong to racial, religious or linguistic minorities shall enjoy the same treatment and security in law and in fact as the other German nationals. In particular they shall have an equal right to establish, manage and control at their own expense charitable, religious and social institutions, schools and other educational establishments, with the right to use their own language and to exercise their religion freely therein.

Polish nationals who belong to racial, religious or linguistic minorities shall enjoy the same treatment and security in law and in fact as the other Polish nationals. In particular they shall have an equal right to establish, manage and control at their own expense charitable, religious and social institutions, schools and other educational establishments, with the right to use their own language and to exercise their religion freely therein.

*Article 69.*

(Article 9, paragraphs 1 and 2, of Minorities Treaty of June 28th, 1919.)

(1) Germany will provide in the public educational system in towns and districts in which a considerable proportion of other than German speech are residents adequate facilities for ensuring that in the primary schools the instruction shall be given to the children of such German nationals through the medium of their own language. This provision shall not prevent the German Government from making the teaching of the German language obligatory in the said schools.

(2) In towns and districts where there is a considerable proportion of German nationals belonging to racial, religious or linguistic minorities, these minorities shall be assured an equitable share in the enjoyment and application of the sums which may be provided out of public funds under the State, municipal or other budget, for educational, religious or charitable purposes.

(1) Poland will provide in the public educational system in towns and districts in which a considerable proportion of Polish nationals of other than Polish speech are residents adequate facilities for ensuring that in the primary schools the instruction shall be given to the children of such Polish nationals through the medium of their own language. This provision shall not prevent the Polish Government from making the teaching of the Polish language obligatory in the said schools.

(2) In towns and districts where there is a considerable proportion of Polish nationals belonging to racial, religious or linguistic minorities, these minorities shall be assured an equitable share in the enjoyment and application of the sums which may be provided out of public funds under the State, municipal or other budget, for educational, religious or charitable purposes.

*Article 70.*

(Article 10 of Minorities Treaty of June 28th, 1919.)

Educational Committees appointed locally by the Jewish communities will, subject to the general control of the State, provide for the distribution of the propor-

Educational Committees appointed locally by the Jewish communities of Poland will, subject to the general control of the State, provide for the distribution of the

tional share of public funds allocated to Jewish schools in accordance with Article 69, and for the organization and management of these schools. The provisions of Article 69 concerning the use of languages in schools shall apply to these schools.

proportional share of public funds allocated to Jewish schools in accordance with Article 69, and for the organization and management of these schools. The provisions of Article 69 concerning the use of languages in schools shall apply to these schools.

#### *Article 71.*

(Article 11 of Minorities Treaty of June 28th, 1919.)

(1) Jews shall not be compelled to perform any act which constitutes a violation of their Sabbath, nor shall they be placed under any disability by reason of their refusal to attend courts of law or to perform any legal business on their Sabbath. This provision, however, shall not exempt Jews from such obligations as shall be imposed upon all other German citizens for the necessary purposes of military service, national defence, or the preservation of public order.

(2) Germany declares her intention to refrain from ordering or permitting elections, whether general or local, to be held on a Saturday, nor will registration for electoral or other purposes be compelled to be performed on a Saturday.

(1) Jews shall not be compelled to perform any act which constitutes a violation of their Sabbath, nor shall they be placed under any disability by reason of their refusal to attend courts of law or to perform any legal business on their Sabbath. This provision, however, shall not exempt Jews from such obligations as shall be imposed upon all other Polish citizens for the necessary purposes of military service, national defence, or the preservation of public order.

(2) Poland declares her intention to refrain from ordering or permitting elections, whether general or local, to be held on a Saturday, nor will registration for electoral or other purposes be compelled to be performed on a Saturday.

#### *Article 72.*

(Article 12 of Minorities Treaty of June 28th, 1919.)

(1) Germany agrees that the stipulations in the foregoing articles, so far as they affect persons belonging to racial, religious or linguistic minor-

(1) Poland agrees that the stipulations in the foregoing articles, so far as they affect persons belonging to racial, religious or linguistic minorities,

ities, constitute obligations of international concern and shall be placed under the guarantee of the League of Nations. They shall not be modified without the assent of a majority of the Council of the League of Nations.

constitute obligations of international concern and shall be placed under the guarantee of the League of Nations. They shall not be modified without the assent of a majority of the Council of the League of Nations. The United States, the British Empire, France, Italy and Japan hereby agree not to withhold their assent from any modification in these articles which is in due form assented to by a majority of the Council of the League of Nations.

(2) Germany agrees that any Member of the Council of the League of Nations shall have the right to bring to the attention of the Council any infraction, or any danger of infraction, of any of these obligations, and that the Council may thereupon take such action and give such direction as it may deem proper and effective in the circumstances.

(3) Germany further agrees that any difference of opinion as to questions of law or fact arising out of these articles between the German Government and any other Power, a Member of the Council of the League of Nations, shall be held to be a dispute of an international character under Article 14 of the Covenant of the League of Nations. The German Government hereby consents that any such dispute shall, if the other Party thereto demands, be referred to the Permanent Court of International Justice. The deci-

(2) Poland agrees that any Member of the Council of the League of Nations shall have the right to bring to the attention of the Council any infraction, or any danger of infraction, of any of these obligations, and that the Council may thereupon take such action and give such direction as it may deem proper and effective in the circumstances.

(3) Poland further agrees that any difference of opinion as to questions of law or fact arising out of these articles between the Polish Government and any one of the Principal Allied and Associated Powers or any other Power, a Member of the Council of the League of Nations, shall be held to be a dispute of an international character under Article 14 of the Covenant of the League of Nations. The Polish Government hereby consents that any such dispute shall, if the other Party thereto demands, be referred to the

sion of the Permanent Court shall be final and shall have the same force and effect as an award under Article 13 of the Covenant.

Permanent Court of International Justice. The decision of the Permanent Court shall be final and shall have the same force and effect as an award under Article 13 of the Covenant.

## DIVISION II.

In order that the protection of minorities in the two portions of the plebiscite territory may be based on the principle of equitable reciprocity, and in order to take account of the special conditions resulting from the transitional régime, the Contracting Parties, without prejudice to the provisions of Section I of the present Part, have agreed on the following provisions for a period of fifteen years.

The contents of Articles 65 to 72 are only repeated in the present Section for the purpose of giving a general view.

## CHAPTER I.

### GENERAL PROVISIONS.

#### *Article 73.*

(1) Poland and Germany undertake that the stipulations contained in Articles 66, 67 and 68 shall be recognized as fundamental laws, that no law, regulation or official action will be permitted to stand in contravention of or in opposition to these stipulations and that no law, regulation or official action shall prevail against them.

(2) Tribunals and courts of justice, including administrative, military and extraordinary tribunals, shall be competent to examine legislative or administrative provisions in order to ascertain whether they conflict with the stipulations of this Part.

#### *Article 74.*

The question whether a person does or does not belong to a racial, linguistic or religious minority may not be verified or disputed by the authorities.

## CHAPTER IV.

## EDUCATION.

*Section I.*—PRIVATE EDUCATION.  
.....*Section II.*—PUBLIC ELEMENTARY EDUCATION.*Article 105.*

## § 1.

For the purposes of the present chapter, elementary schools shall be taken to mean schools, other than extension (supplementary) schools, which children must attend if the prescribed tuition is not given to them in any other manner.

## § 2.

The requirements of minorities as regards public elementary education shall be supplied by means of the following educational institutions:

- (a) elementary schools employing the language of the minority as the language for imparting instruction, known as minority schools;
- (b) elementary classes employing the minority language as the language for imparting instruction attached to elementary schools employing the official language, known as minority classes;
- (c) minority courses including:
  - (1) tuition in the minority language (minority language courses);
  - (2) religious instruction in the minority language (minority religious courses).

*Article 106.*

## § 1.

(1) A minority school shall be established on the application of a national, supported by the persons legally responsible for the education of at least forty children belonging to a linguistic minority, provided that these children are nationals of the State, that they belong to the same school district (*Schulverband—związek szkolny*), that they are of the age at which



education is compulsory, and that the intention is that they should attend the said school.

(2) If at least forty such children belong to the same denomination or religion, a minority school of the denominational or religious character desired shall be established on application.

(3) Should the establishment of a minority school be inexpedient for special reasons, minority classes shall be formed.

## § 2.

The applications mentioned in paragraphs 1 and 2 of § 1 shall be complied with as expeditiously as possible and not later than the beginning of the school year following the application, provided that the latter has been submitted at least nine months before the beginning of the school year.

### *Article 107.*

(1) On the application of a national, supported by the persons legally responsible for the education of at least eighteen pupils of an elementary school who are nationals of the State and belong to a linguistic minority, minority language courses shall be formed as soon as possible for such pupils.

(2) Under the same conditions, if not less than twelve of such pupils belong to the same denomination or religion, minority courses for religious instruction shall be formed for these pupils upon application.

### *Article 108.*

## § 1.

(1) Minority educational institutions may only be suppressed if the number of pupils attending them has fallen below the number fixed for their establishment for three consecutive years.

(2) Nevertheless their suppression may be ordered at the end of a school year if throughout the whole of that year the number of pupils has been less than one half of the number contemplated.

## § 2.

In the event of the suppression of a minority educational institution, the minority may maintain such institution as a

private concern. When circumstances permit, the premises and educational equipment used may be left at the disposal of the institution.

*Section III.*—VOCATIONAL AND SUPPLEMENTARY EDUCATION.

*Section IV.*—SECONDARY AND HIGHER EDUCATION.

*Section V.*—GENERAL PROVISIONS.

*Article 131.*

(1) In order to determine the language of a pupil or child, account shall only be taken of the verbal or written statement of the person legally responsible for the education of the pupil or child. This statement may not be verified or disputed by the educational authorities.

(2) Similarly, the educational authorities must abstain from exercising any pressure, however slight, with a view to obtaining the withdrawal of requests for the establishment of minority educational institutions.

*Article 132.*

§ 1.

By language for imparting instruction or language considered as a subject of the curriculum is meant correct literary Polish or German as the case may be.

§ 2.

When a minority language is the language for imparting instruction, it shall be used for the teaching of all subjects, except for the teaching of Polish in the Polish part of the plebiscite territory and for the teaching of German in the German part of that territory, when instruction in these languages forms part of the school curriculum.

§ 3.

Minority courses in the minority language shall be given in that language.

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DIVISION III.

RIGHTS OF PETITION AND MEANS OF REDRESS.

*Article 147.*

The Council of the League of Nations shall be competent to decide upon any individual or collective petitions relating to the provisions of this Part or addressed directly to it by persons belonging to a minority. When the Council transmits such petitions to the Government of the State in the territory of which the petitioners are resident, this Government shall return them to the Council for examination, with or without observations.

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*Article 149.*

As regards the application or interpretation of the provisions of this Part by administrative authorities who receive orders from their immediate superiors, persons belonging to a minority may, in accordance with the following provisions, submit a petition for consideration by the Office of Minorities of the State to which they belong. This Department shall, in accordance with the special conditions laid down in the following articles, transmit such petitions to the President of the Mixed Commission for his opinion. Should the petitioners not be satisfied with the solution given to the matter by the administrative authority, they may appeal to the Council of the League of Nations.

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*Article 157.*

The appeal to the Council of the League of Nations provided for in Article 149 shall be addressed to the Office of Minorities. The latter shall cause it to be forwarded to the Council by the Government.

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